

Tab 1

*Certain identifying information has been redacted to protect the privacy of the individuals involved.*

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**I. Objective**

The subject was convicted by a [REDACTED] County Circuit Court jury of first degree rape on October 16, 2001. The purpose of this project is to review all related discovery materials, trial transcripts, and post-conviction relief filings to **identify procedural inconsistencies, highlight areas for further review, and organize findings for external evaluation.**

## **II. Key Findings**

### **1. Inconsistencies in Evidence Disclosure Timeline**

Comparison of laboratory report completion dates with statements made during pretrial proceedings suggests discrepancies in how the status of forensic evidence was communicated. Documented timelines indicate that key materials may not have been available to the defense until shortly before trial.

### **2. Indicators of Incomplete or Duplicated Medical Documentation**

Review of certified medical records identified a discrepancy between the reported total page count and the number of unique pages present. The presence of a duplicated form suggests the possibility of a missing document within the official record.

### **3. Judicial Decision Patterns Affecting Procedural Requests**

The record reflects multiple instances where defense motions related to evidence access and inspection were denied on procedural grounds, while the prosecution continued to introduce supplemental materials up to the day of the trial.

### **4. Undisclosed Relationship Network Identified**

Review of publicly available records indicates overlapping familial and professional relationships between the presiding judge and prosecuting attorney that were not disclosed in the trial record. These connections extended across legal practice, nonprofit governance, and jointly affiliated business entities.

## **5. Evidentiary Interpretation Dependent on Historical Standards**

Modern changes to evidentiary standards now restrict expert witnesses from opining to the guilt of the defendant. The impact of expert testimony presented at trial, which included statements linking physical findings to narrative accounts, may be interpreted differently under current precedent.

### III. Significance of Findings

#### **Pattern Recognition Across Independent Irregularities**

Individually, each issue may be explainable within procedural norms. When considered together, the inconsistencies in disclosure timing, documentation completeness, and procedural handling highlight a pattern that may warrant further review.

#### IV. Materials

**2,000+ pages<sup>1</sup> of original defense material including:**

- Trial transcripts (3 volumes, approximately 150 pages each)
- Law enforcement investigation materials (12 documents), including:
  - Forensic Laboratory Report (2 pages)
  - 5 Witness statements
  - 12 photos
  - Internal notes (3 pages)
  - Official citations and uniform reports (4 pages)
- 24 pretrial document filings, including:
  - Medical report (15 pages)
- 6 pretrial motions
- 6 pretrial hearing transcripts
- 14 pretrial orders
- Trial exhibits (14 pages)
- 9 sentencing filing
- 3 sentencing hearing transcripts

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<sup>1</sup> The original 2,000+ page collection of documents had been compiled by the defendant over time as each document was received. This was complicated by multiple prison transfers, reassignment of public defenders, involvement of several courts during the appellate process, and other court record custody issues typical of the pre-digital era. Reconstructing a coherent case chronology required careful organization and cross-referencing.

- 10+ miscellaneous trial court records
- Direct Appeal
  - 6 briefs and reply briefs (approximately 75 pages total)
  - Judicial opinion (21 pages)
  - Judicial order
- RCr 11.42 Appeal
  - 9 motions
  - 7 briefs and replies
  - 7 orders
  - Judicial opinion
- Federal Habeas Corpus
  - 5 motions
  - 7 briefs and replies
  - 5 orders
  - 2 judicial opinions
- Post conviction attorney communications (38 letters)



The materials were ultimately organized<sup>2</sup> into **seven 3-ring binders** of varying sizes.

1. Discovery and Evidence – 1.5–2 inch binder
2. Pre-Trial and Trial – 3 × 3 inch binders
3. Sentencing – 1–1.5 inch binder
4. Direct Appeal – 2.5 inch binder
5. RCr 11.42 Appeal – 2 inch binder
6. Federal Habeas Corpus – 3 inch binder
7. Post-Conviction Attorney Communications - 1 inch binder (very full)

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<sup>2</sup> All evidentiary materials, original communications, and potentially significant documents identified through this work were also digitized as part of this project.

## **V. Methodology**

### **1. Organize and review materials.**

- a. Categorize materials to facilitate complete review.
- b. Separate appeals and determine issues already litigated.
- c. Examine pretrial motions and counsel statements to understand trial strategy.
- d. Identify instances where factors outside the defense's control impacted strategy.

### **2. Identify significant hurdles and inconsistencies.**

- a. Verify factual statements in court against original documentation.
- b. Compare expert testimony with current industry standards.
- c. Review discovery materials for unclear timelines or inconsistencies.
- d. Locate later cases with similar elements or legal precedents.

### **3. Research case law on conflicts of interest.**

### **4. Collect Open-Source Intelligence (OSINT) using public records.**

- a. Research individuals involved in investigation, prosecution, and judiciary.
- b. Determine if any individuals have been the subject of official disciplinary action in their respective fields.
- c. Search for familial, professional, financial, and social connections.
- d. Create family trees and timelines for potential conflicts.

### **5. Identify correlations between procedural bias and OSINT findings.**

**6. Summarize key findings using reconstructed timelines, charts, and tables.**

**Create visuals to illustrate:**

- a. Evidence access and judicial decisions
  - b. Due diligence during appeals
  - c. Gaps suggesting bias or procedural unfairness
- 7. Organize legal and OSINT sources into appendices.**
- 8. Highlight areas requiring further review, including time-sensitive issues or reliance on third-party records.**

## **VI. Supporting Analysis**

### **1. Case History**

The facts of the case are accurately summarized by Hon. [REDACTED], [REDACTED] County Circuit Court (Order for a New Trial, 22 March 2006) as follows:

[REDACTED] and his wife lived in an apartment above the apartment where the victim and her sister and brother-in-law lived. The sister left the apartment to take her husband's hat to him at work. The victim was a 23 year old, mentally challenged virgin. [REDACTED] went downstairs to borrow some video tapes and, finding no one at home except the victim, decided to have sex with her. Ultimately, the defendant's wife came downstairs, finding the defendant on his knees in front of the victim and broke up whatever was happening. The defendant characterizes the encounter as nothing more than "gentle fingering" with two fingers; a "SANE" nurse described trauma to the victim as bruising and bleeding, a torn hymen, bruising inside the vagina and a tear below the vagina. Defendant admitted that he intended to have sexual intercourse with the victim but asserted that there was never any penile penetration.

On the morning that the trial began, the defendant's Public Advocate attorney realized that she had failed to subpoena the state police lab examiner whose report she had received in discovery. The report contained the laboratory analysis of the "rape kit" collected at the hospital by the SANE nurse from the victim and from the defendant. The analysis indicated that neither the defendant's hair or bodily fluids were found in the victim's test, nor were hers found in his test. The defendant's attorney moved for continuance, but the trial court ruled that the motion was untimely.

Throughout the course of the trial, it became obvious that testing had been done, primarily through the testimony of the SANE nurse and other testimony. There was an allegation that trial counsel for the defendant talked to the jury in open argument about the lab reports exculpating the defendant, but this was not confirmed when the transcript was reviewed. The report was never admitted into evidence. During jury deliberation, however, the jury inquired of the trial judge about the results of the rape kit.

## **2. Potential Evidentiary Bias Indicated by Court Record**

### **a. Discovery Misrepresentation and Potential Misconduct**

The prosecution failed to disclose sexual assault exam laboratory results and may have misrepresented the status of those results in open court.

Selection from [Appendix 1](#), Prosecution Misrepresentation and Delay Timeline:

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8/14/01 Examiner [REDACTED] completed “Report of Forensic Laboratory Examination” (see KSP Lab Report, bottom line of both pages)

9/7/01 At a pre-trial hearing, defense said she still had not “received a rape kit, or anything of that nature”, to which the Commonwealth’s Attorney replied “they haven’t completed it”. (Transcript of Motion, 9/7/01, pages 3-4)

9/17/01 Defense receives discovery of “Report of Forensic Laboratory Examination” (provided by KSP Northern Lab via fax) (KSP Lab Report top line of both pages)

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During a pretrial hearing the defense asked whether the laboratory results were available yet. The Commonwealth’s Attorney’s response was inconsistent with the completion dates reported by the laboratory. As a result the defense experienced a significant delay in receiving elements of discovery that could have been used to demonstrate the credibility of the subject and impeach the Commonwealth’s witnesses.

In regard to the significance of the Commonwealth’s Attorney’s delay, it should be noted that at the time the laboratory results became available on August 14, the record shows that the trial date was set for September 10. The trial date was not set for October

until the hearing on September 7, the same hearing in which the Commonwealth's Attorney said the laboratory reports were not yet completed (contradicting the completion dates reported by the laboratory). Ten more days passed before the defense was finally able to receive those results directly from the KSP Northern Lab via fax. This limited time window hindered counsel's ability to issue subpoenas, request additional testing, or otherwise investigate the lab results prior to trial. In contrast, the prosecution issued multiple subpoenas for their witnesses well in advance of both scheduled trial dates, possibly indicating disparities in the procedural opportunities available to each side during pretrial

**b. Possibility of Incomplete Medical Record**

On February 19, 2001, shortly after the alleged incident, [REDACTED VICTIM] was taken to [REDACTED] for a sexual assault exam to be conducted. The medical record from this visit was copied and notarized by [REDACTED] Custodian of Medical Records. The cover page of this record, "CERTIFIED COPIES OF MEDICAL RECORDS", shows that the record contains 15 pages. (The appendix originally containing this record has been redacted in its entirety due to the sensitive nature of information it contains.) The discovery provided to defense does contain 15 sheets of paper, but the page titled "SEXUAL ASSAULT EXAMINATION CERTIFICATE" has been copied and the duplicate is also included in the record. As a result there are only 14 unique pages in the medical record, possibly suggesting the existence of a missing 15th page.

The duplicated page originated from a carbon copied triplicate form intended to be split between the billing office (white), hospital (canary), and the physician (pink). Preliminary research indicated that it is not proper practice for a medical record to contain duplicates. The office responsible for billing should have received the white form and the pink form should have been filed with the Sexual Assault Nurse Examiner or the ER doctor's records.

After closely examining the copies under magnifying glass and researching printer and copy forensics, it appears that the duplicate is a second generation copy of the hospital's canary SEXUAL ASSAULT EXAMINATION CERTIFICATE (the only copy which should have been in the hospital's medical record). A second generation copy increases contrast, darkening the original text, as seen on the duplicate. If this was simply a first generation copy of a mistakenly filed pink form the appearance would be grainier.

Evidence of a duplicated page would strongly imply it had taken the place of a previously unknown, unique page. A missing page could point to mishandling of discovery or intentional concealment. Either situation would have hindered trial counsel's ability to comprehensively examine the record for all available exculpatory arguments and interfered with the defense.

### **c. Potential Judicial Abuse of Discretion**

Certain decisions made by the judge throughout the trial process may have shown judicial indiscretion ([Appendix 2](#)). At a hearing on September 7, 2001, the final pre-trial

was scheduled for October 5, 2001 and trial was scheduled for October 16, 2001. After reviewing parts of discovery that the prosecution had long been aware of and delayed providing to the defense, trial counsel entered a motion on October 4 to be provided with all mental health and medical records of the complaining witnesses. Despite this motion being filed one day before the originally planned pre-trial date, [REDACTED] Judge, overruled, finding in an October 9 order that the motion had been untimely.

For unknown reasons, the final pre-trial conference was not held on October 5, as there is no transcript for such a hearing and the only court record for that day is an entry scheduling a motion hour for October 9 instead. The transcript of this hearing is titled “Transcript of Pre-Trial Conference” and contains statements from defense counsel that, although the charge had been around since February, she had “received discovery continually” and indicating that there had been supplemental discovery filing as well (“Transcript of Pre-Trial Conference”, 10/9/01, page 8). In support of this, the record shows that she had continued to receive supplemental discovery as recently as September 27, just one week before she filed the motion requesting [REDACTED VICTIM] medical record.

On October 10, the day after the defense’s untimely motion was overruled, Judge [REDACTED] issued an “Order of Payment to Commonwealth’s Witness” for [REDACTED VICTIM] travel expense to be reimbursed. On October 15, the prosecution filed supplemental discovery in the form of audio transcript from a second witness statement. The defense had been previously unaware that such a statement existed and the same day filed a motion for discovery and inspection of evidence. The defense argued that there were



substantial differences in the two statements, and that second recorded statement taken an hour later showed evidence of significant prompting ( Trial Volume 1, pages 5-7).

[REDACTED VICTIM] had graduated high school and although she did so from a special education program, her competency to testify (Trial Volume 1, page 6) or ability to consent sexually were not at issue. However, [REDACTED VICTIM] credibility to a jury was still a significant factor affecting the subject's ability to properly mount a defense. Because of this, trial counsel argued that the evidence of prompting in the more detailed second statement was especially important. With this in mind, the trial counsel also submitted a motion to reconsider Judge [REDACTED] previous decision not to order compulsory discovery of [REDACTED VICTIM] mental health and medical records. Additional supplemental documents including a "Medical Report in Re Victim" continued to be filed by the prosecution up to and on the day of trial.

The next day on the morning of the trial, October 16, Judge [REDACTED] denied all of the defense's motions attempting to address the prosecution's various delays, misrepresentations, and withholding of information ( trial volume 1, pages 10-13). Finally, on October 17, Judge [REDACTED] issued an additional order in favor of the Commonwealth to reimburse [REDACTED VICTIM] travel expense back to her home county.

### **3. Undisclosed Relationships Identified with OSINT Research**

The [REDACTED] County Circuit Court judge who presided over the trial, [REDACTED], and the Commonwealth Attorney at trial, [REDACTED], did not disclose their

familial connections ([Appendix 3.1](#)). Specifically, [REDACTED] father-in-law, [REDACTED], and uncle-in-law, [REDACTED], were members of a law firm known at the time of the trial as [REDACTED]. [REDACTED] is the son of [REDACTED] and was a partner at his father and uncle's practice. Because the [REDACTED] County Assistant Commonwealth Attorney was still considered a part time position in 1982, [REDACTED] was able to retain his position at the family practice for at least ten years ([Appendix 3.2](#)). Another partner at the same practice also worked in both roles during his time as county prosecutor, which coincided with the 2001 case.

The [REDACTED] Foundation, a non-profit established in 1989, was founded and directed by [REDACTED], [REDACTED], and other members of the [REDACTED] family. The [REDACTED] Foundation held the family's assets. The exact amount of shared wealth at the time of the trial is not known, but the substantial amount of land owned by The [REDACTED] Foundation is evidence of the types of transactions and holdings that this family was jointly associated with.

Additional conflicts of interest could have resulted from the family's numerous businesses ([Appendix 3.3](#)). [REDACTED] and [REDACTED] were jointly involved in [REDACTED] Subdivision Incorporated, a neighborhood association established in 1974, which represented 60+ homes at the time of the trial. Members of both the [REDACTED] and [REDACTED] families lived in [REDACTED] Subdivision. [REDACTED] and [REDACTED] also started [REDACTED] Corporation together in 1998.

#### **4. Prosecution's Evidence Lacking By Modern Standards**

At trial the Sexual Assault Nurse Examiner (SANE), [REDACTED], who treated [REDACTED VICTIM] at [REDACTED] and collected biological samples, testified that “her injuries were consistent with (her) story” (trial volume 2, page 106). The legal landscape since the time of this trial has since changed. Rule of Evidence 702 ([Appendix 4](#)) now bars expert witnesses from opining on the guilt or credibility of a criminal defendant. The opinions rendered by the Kentucky Court of Appeals (COA 2006-CA-812-MR, 5/11/07, page 6) leaned heavily on [REDACTED] testimony in their analysis of the Strickland prejudice prong. [REDACTED] opined to the subject's guilt when she testified before the jury that her findings were consistent with [REDACTED VICTIM] story. By nature of this case, [REDACTED] story is directly at odds with the subject's claim of innocence. The prosecution used [REDACTED] testimony to then admit photographic evidence and support [REDACTED VICTIM] version of events.

Appellate prejudice analysis repeatedly found that incriminating evidence presented to the jury in the form of photographs, [REDACTED VICTIM] testimony, and [REDACTED] expert testimony as it pertained to the photographs and [REDACTED VICTIM] testimony, was strong enough to maintain confidence in the conviction in spite of finding that counsel's performance was deficient. [REDACTED] testimony would be disallowed or severely limited by modern standards.

#### **5. Due Diligence and Timeliness by Subject**

Subject showed due diligence in requesting copies of his court records in order to file timely appeals while incarcerated ([Appendix 5](#)). He experienced significant delays during this process to no fault of his own, yet still exhausted the legal remedies that he could to the best of his ability. With only a layman's knowledge of the legal process, medical documents, and scientific testing, he could not have reasonably been expected to identify the extent of the mistakes in his trial record during the time he was incarcerated. Furthermore, these seemingly unrelated issues do not stand out as a pattern until they are examined alongside the judicial and prosecutorial conflicts of interest discussed in this report.

VII. Conclusion

This project uncovered evidence which points to a conflict of interest between the trial court and Commonwealth Attorney. By identifying potential irregularities in the record, possible prosecutorial misrepresentation, inconsistent disclosures of lab evidence, and decisions that may constitute judicial indiscretion, a pattern indicative of procedural and evidentiary issues leading up to the subject's conviction emerged.

## **Appendix 1: Complete Discovery Timeline**

Entries relevant to the context of Commonwealth's delays are highlighted.

| <b>Date</b> | <b>Action Taken</b>                                                                                       |
|-------------|-----------------------------------------------------------------------------------------------------------|
| 2/19/01     | Sexual assault exam at [REDACTED] completed by SANE, signed over to Det. [REDACTED]                       |
| 2/26/01     | KSP lab receives evidence taken from exam from Det. [REDACTED] via Lt. [REDACTED]                         |
| 4/6/01      | [REDACTED] certified medical record                                                                       |
| 4/24/01     | Commonwealth filed motion for discovery/inspection, bill of particulars, response to motion for discovery |
| 5/4/01      | Defense has not received discovery (see hearing transcript)                                               |
| 5/7/01      | Commonwealth filed intent to use other bad acts                                                           |
| 5/18/01     | Trial set for 9/10/01                                                                                     |
| 5/18/01     | Defense still does not have all discovery (see hearing transcript)                                        |
| 8/7/01      | Commonwealth issues 5 subpoenas (at the time trial was set for 9/10/01)                                   |
| 8/14/01     | Lab report completed by examiner [REDACTED]                                                               |
| 8/17/01     | Results faxed by KSP Northern Lab – no cover sheet, see top line for fax info                             |
| 8/21/01     | “Returned” certified mail (see lab report)                                                                |
| 8/27/01     | Trial moved to 9/10/01                                                                                    |
| 9/7/01      | Trial scheduled for 10/16/01                                                                              |
| 9/7/01      | Defense still missing rape kit results; Commonwealth states it is not ready during hearing                |
| 9/12/01     | Commonwealth subpoenas 4 witnesses (at the time trial was set for 10/16/01, pretrial for 10/5/01)         |
| 9/17/01     | Pretrial conference set for 10/5/01 and trial for 10/16/01                                                |

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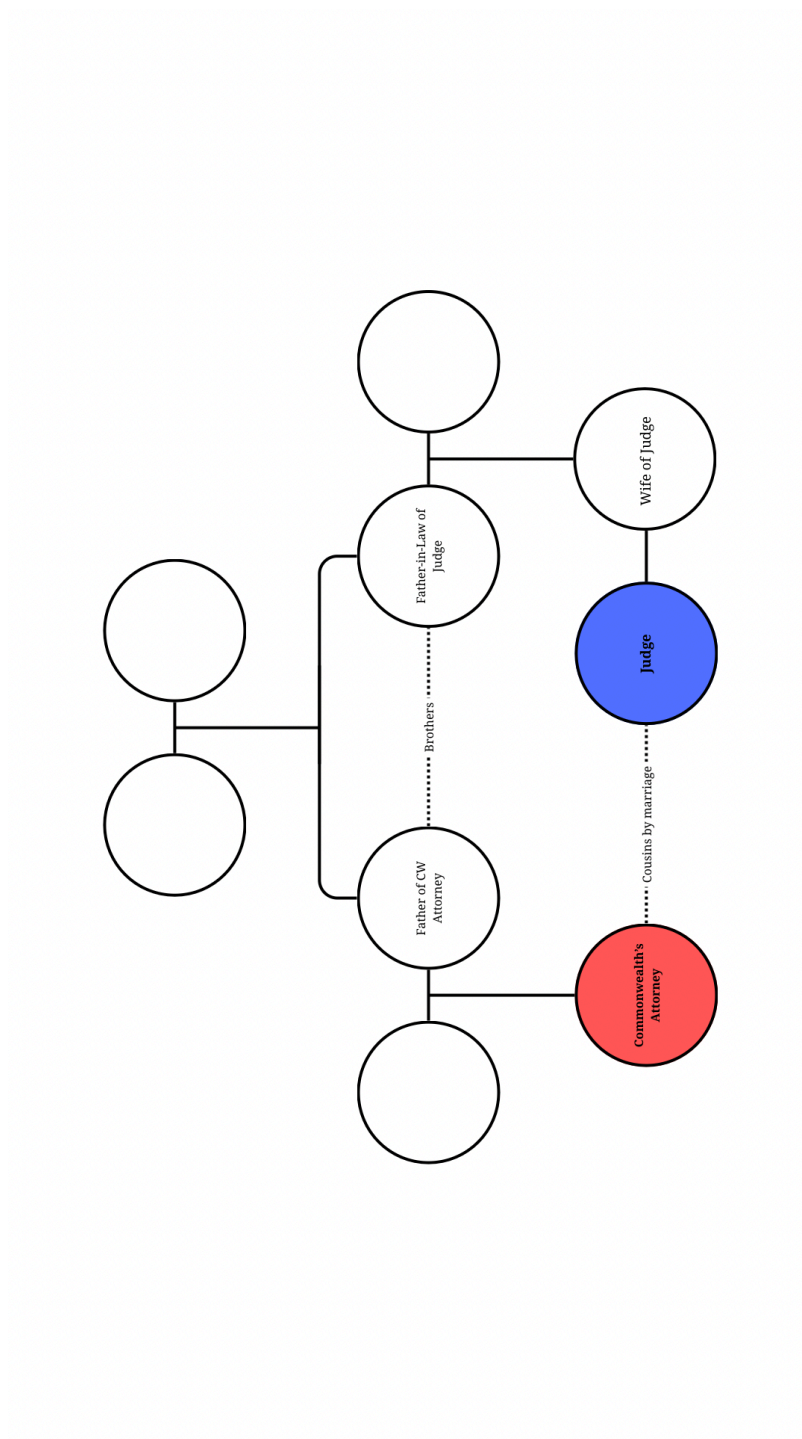
|          |                                                                                                            |
|----------|------------------------------------------------------------------------------------------------------------|
| 9/17/01  | Commonwealth supplemental discovery response                                                               |
| 9/27/01  | Commonwealth discovery response                                                                            |
| 10/4/01  | Motion for mental health records by defense                                                                |
| 10/9/01  | Defense motion denied                                                                                      |
| 10/10/01 | Order for payment of Commonwealth witness travel expense approved                                          |
| 10/15/01 | Defense filed motion for discovery and inspection, including long comprehensive list                       |
| 10/15/01 | Supplemental discovery filed by Commonwealth, presumed to be [REDACTED VICTIM] second statement transcript |
| 10/16/01 | Document filed: medical report regarding victim                                                            |

## Appendix 2: Potential Abuse of Discretion Timeline

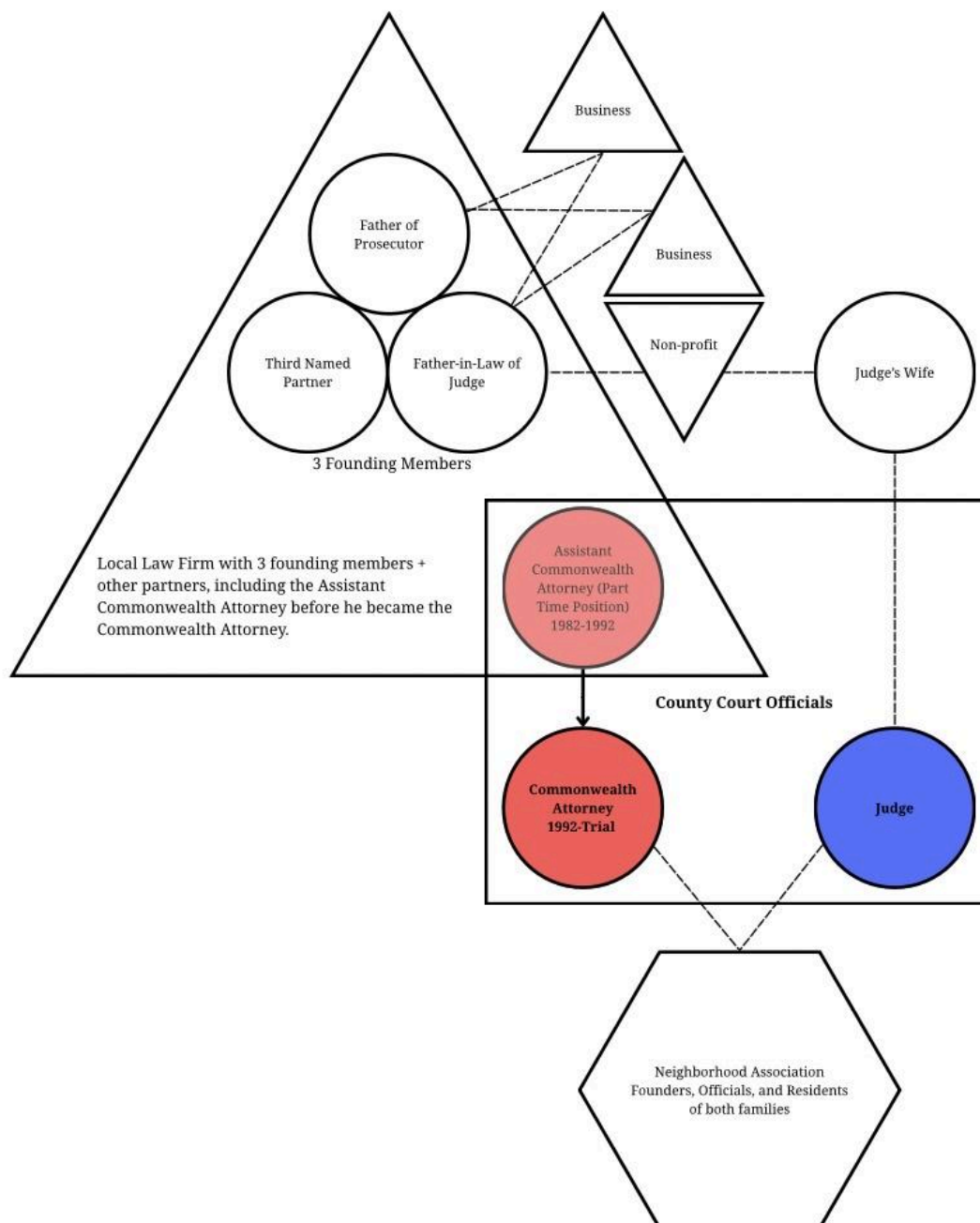
| Date     | Action Taken                                                                                                                                                                                                                     |
|----------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 09/07/01 | Final pretrial scheduled 10/05, trial scheduled 10/16. Defense stated she had not yet received discovery, and prosecution incorrectly asserted lab report had not been completed (see Transcript of Motion, 09/07/01, pages 3-4) |
| 09/17/01 | Defense received KSP Lab Report (see Lab Report 2 pages)                                                                                                                                                                         |
| 09/27/01 | Supplemental discovery                                                                                                                                                                                                           |
| 10/04/01 | Defense motion to be provided with any mental health or medical records                                                                                                                                                          |
| 10/05/01 | No hearing held, motion hour scheduled for 10/09                                                                                                                                                                                 |
| 10/09/01 | Judge [REDACTED] overrules defense's motion for timeliness (see order)                                                                                                                                                           |
| 10/10/01 | Judge [REDACTED] issues order to reimburse the Commonwealth's witness for [REDACTED]'s travel expenses (see order)                                                                                                               |
| 10/15/01 | Commonwealth files supplemental discovery containing materially different second witness statement                                                                                                                               |
| 10/15/01 | Defense files motion to review evidence and motion to reconsider previous decision                                                                                                                                               |
| 10/16/01 | Judge [REDACTED] denies all of defense counsel's related motions                                                                                                                                                                 |
| 10/16/01 | Trial and conviction                                                                                                                                                                                                             |
| 10/17/01 | Judge [REDACTED] issues another order to reimburse the Commonwealth's witness for [REDACTED]'s travel expenses (see order)                                                                                                       |



### Appendix 3.1 Undisclosed Conflicts of Interest - Familial Connections



### Appendix 3.2: Undisclosed Conflicts of Interest - Official Positions Visualization



**Appendix 3.3: Undisclosed Conflicts of Interest - Businesses Table<sup>3</sup>**

| Type of Business         | Years Active at Time of Trial | Directors & Incorporators                      | Other Member/Employee Roles                                                        |
|--------------------------|-------------------------------|------------------------------------------------|------------------------------------------------------------------------------------|
| Neighborhood Association | 24                            | Father-in-Law of Judge<br>Father of Prosecutor | Other family members also lived in neighborhood                                    |
| Law Firm                 | 20+                           | Father-in-Law of Judge<br>Father of Prosecutor | Prosecutor also previously employed during role as Assistant Commonwealth Attorney |
| Corporation              | 31                            | Father-in-Law of Judge<br>Father of Prosecutor |                                                                                    |
| Corporation              | 3                             | Father-in-Law of Judge<br>Father of Prosecutor |                                                                                    |
| Non-profit               | 12                            | Father-in-Law of Judge<br>Wife of Judge        |                                                                                    |

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<sup>3</sup> Public records used include two newspaper articles, an obituary, three business records found on OpenCorporates, and publicly available historic address information. Sources related to public officials available on request.

## Appendix 4: Changes to Rule of Evidence 702

| Date | Case                                                                       | Significance                                                                                                                                                                                                                                                                                                         |
|------|----------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1996 | Newkirk v. Commonwealth, 937 S.W.2d 690 (Ky. 1996)                         | Pre-Rule 702 codification: Kentucky Supreme Court held that expert testimony that essentially opines on guilt or the credibility of key testimony (e.g., in child abuse cases) can be improper because it invades the jury's province in deciding ultimate issues. Expert cannot testify that a defendant is guilty. |
| 1998 | Tamme v. Commonwealth, 973 S.W.2d 13 (Ky. 1998)                            | Kentucky adopts Daubert-style reliability analysis for expert testimony under KRE; judges act as gatekeepers for scientific evidence (predates 2001 but foundational to post-2001 practice).                                                                                                                         |
| 2004 | Miller v. Eldridge, 146 S.W.3d 909 (Ky. 2004)                              | Clarified appellate standards under KRE 702: determinations of reliability (gatekeeping) reviewed for clear error, and determination of whether testimony assists the trier of fact reviewed for abuse of discretion — reinforcing the trial judge's role as gatekeeper.                                             |
| 2007 | Amendment of KRE 702 (Supreme Court Order 2007-02)                         | Kentucky Rules of Evidence amended to mirror Federal Rule 702's reliability factors: (1) sufficient facts/data, (2) reliable principles/methods, and (3) reliable application to facts. This codified the Daubert gatekeeping framework statewide.                                                                   |
| 2010 | Blankenship v. Collier, 302 S.W.3d 665 (Ky. 2010)                          | Reaffirmed heightened reliability scrutiny under KRE 702 in medical-malpractice/expert evidence contexts, emphasizing judges' gatekeeper role.                                                                                                                                                                       |
| 2013 | McDaniel v. Commonwealth, 2013-SC-000564-M R (Ky. 2013)                    | Confirmed that trial courts have broad discretion to admit expert testimony under KRE 702 and that a formal Daubert hearing isn't required in every case; judges still must evaluate reliability and helpfulness.                                                                                                    |
| 2014 | Commonwealth of Kentucky v. Lynch, 2024 Ky. App. LEXIS (Ky. Ct. App. 2024) | Court of Appeals applied amended KRE 702 standards in a criminal context, reviewing admissibility of specialized expert evidence (HGN / lay vs. expert testimony) under the codified reliability approach.                                                                                                           |
| 2024 | Kentucky Rules of Evidence Amendment (KRE 702)                             | Effective amendment further revising KRE 702 (per Supreme Court Order 2024-19), modernizing expert-testimony rule text and arguably affecting how reliability/gatekeeping is applied in both civil and criminal cases.                                                                                               |

## **Appendix 5: Due Diligence Timeline**

Actions and letters sent by the subject (inmate) are highlighted. Letters from counsel to the subject are not.

| <b>Date</b> | <b>Action Taken</b>                                                                                                                                                                                                                                                                                                                  |
|-------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 02/15/02    | Letter to inmate from Kentucky State Reformatory re: request for assistance, meeting scheduled for 02/20/02                                                                                                                                                                                                                          |
| 05/14/02    | Court of Appeals letter to inmate in response to requests for records                                                                                                                                                                                                                                                                |
| 05/17/02    | Inmate letter to counsel [REDACTED] requesting copies of 12 volumes associated with his case and offering to pay for them on his inmate salary of \$15/month to use them on RCr. 11.42                                                                                                                                               |
| 06/26/02    | Inmate letter requesting copies of file from Circuit Court Clerk                                                                                                                                                                                                                                                                     |
| 07/10/02    | Inmate letter requesting copies of transcripts from [REDACTED] Court Reporters                                                                                                                                                                                                                                                       |
| 04/25/03    | Inmate letter requesting case history from Circuit Court Clerk                                                                                                                                                                                                                                                                       |
| 11/18/03    | Inmate letter to trial counsel [REDACTED] requesting “full and complete copy” of his entire file                                                                                                                                                                                                                                     |
| 11/18/03    | Inmate letter requesting copies of file from Circuit Court Clerk                                                                                                                                                                                                                                                                     |
| 11/24/03    | Department of Finance “Request for Inspection of Records” (Form B-010-1) submitted to [REDACTED] Records Dept.                                                                                                                                                                                                                       |
| 12/08/03    | Inmate letter requesting copies of transcripts from [REDACTED] Court Reporters with enclosed docket sheet highlighting pieces not received yet, highlights include discovery                                                                                                                                                         |
| 12/08/03    | Department of Finance “Request for Inspection of Records” (Form B-010-1) submitted to Commonwealth Attorney [REDACTED] (trial prosecution), specifically requesting “complete” copy of his criminal file, including any confessions or statements against him, copies of any and all rape test results, all motions filed by counsel |
| 12/17/03    | Inmate letter with second formal request to trial counsel [REDACTED] for a “full and complete copy” of his case                                                                                                                                                                                                                      |

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|----------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 12/23/03 | Inmate letter re: inquiry about discretionary review in case no: 2002-CA-63 from KY Supreme Court                                                                                            |
| 01/05/04 | Kentucky Bar Association complaint form filed against [REDACTED] for failure to respond to requests for copies of file                                                                       |
| 01/07/04 | Response from [REDACTED], Department of Public Advocacy, providing copy of requested files                                                                                                   |
| 01/10/04 | Inmate response to [REDACTED] January 7 letter stating full content of letter                                                                                                                |
| 01/12/04 | Inmate letter requesting copies of transcripts from [REDACTED] Court Reporters                                                                                                               |
| 01/28/04 | Inmate letter requesting copies of transcripts from [REDACTED] Circuit Court Clerk                                                                                                           |
| 03/19/04 | Inmate letter to counsel [REDACTED] asking if trial volume 3 has been located yet and inquiring about future appeals                                                                         |
| 03/30/04 | Counsel letter from [REDACTED] to inmate stating "today, while cleaning my office, I found the last volume of your trial record"                                                             |
| 08/18/04 | Response from [REDACTED], DPA, stating "sorry it took so long to get back to you" and "I hope we've sent everything that you need" (believed to be in response to January letter)            |
| 10/04/04 | 3-year deadline on RCr 11.42 appeal, pro se motion filed                                                                                                                                     |
| 01/05/05 | Letter from counsel [REDACTED] with enclosed form needing signature to release files from trial attorney                                                                                     |
| 01/07/05 | Inmate response stating he is in possession of most of his records                                                                                                                           |
| 02/10/05 | Letter from counsel [REDACTED] stating receipt of copy of inmate's attorney file from [REDACTED] office                                                                                      |
| 09/29/05 | Inmate letter to counsel with legal research and analysis to include in appeal                                                                                                               |
| 08/25/06 | Court of Appeals letter enclosing docket sheet in response to inmate request                                                                                                                 |
| 09/01/08 | Pro Se Habeas filed                                                                                                                                                                          |
| 07/16/10 | Letter to inmate from [REDACTED], DPA, stating "[REDACTED] called today and said that you want a copy of everything filed in the 6th Circuit. As far as I know, I have sent you everything." |

**Project 1: Legal Case Study | Amber Swartzentruber | Completed October 2025**

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| 09/30/11 | Letter to inmate from [REDACTED], DPA stating “there is nothing more that can be done about your conviction at this point.” |
| Undated  | Post it from [REDACTED] – says “I finally found the last trial binder”                                                      |
| Undated  | Post it from appellate attorney – says “This guy likes capital letters I guess,” attorney did not receive                   |